

JAN 29 2021

In the Iowa Supreme Court

CLERK SUPREME COURT

**In the Matter of Adopting
Chapter 2 Criminal Case
Expungement Rules**

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)

Order

participation in the case

The Iowa Supreme Court adopts new rules and forms concerning criminal case expungements that will be added to the Iowa Rules of Criminal Procedure, chapter 2 of the Iowa Court Rules.

During the 2019 session of the Iowa General Assembly, the legislature passed, and the Governor signed, a bill (SF 589) that created new Iowa Code section 901C.3, which provides an expungement process for certain misdemeanors. By Administrative Directive in August 2019, the State Court Administrator established the Expungement Advisory Committee to provide recommendations to the judicial branch regarding the proper implementation of Senate File 589. The advisory committee prepared a report of recommendations for the State Court Administrator's consideration and subsequently formed a workgroup to develop proposed rules and forms to implement the section 901C.3 expungement process.

While developing the rules and forms, the workgroup expanded the project to include criminal case expungements pursuant to Iowa Code sections 901C.2, dismissed cases and acquittals; 123.46, public intoxication cases; 123.47, possession of alcohol under the legal age cases; and 725.1, certain prostitution cases. The court invited public comment on its proposed rules and forms on August 26, 2020. The public comment period closed October 26, 2020, with the court having received valuable public comments.

The expungement rules accompanying this order set forth the application process for each type of expungement, describe the effects of an expungement, and provide for the tracking of completed Iowa Code

signature/date review zone

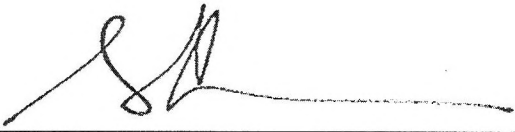
section 901C.3 expungements for internal judicial branch use. Forms have also been developed for each type of expungement application.

participant/case info review zone

These additions to the Iowa Rules of Criminal Procedure, chapter 2 of the Iowa Court Rules, become effective for expungement applications filed on or after July 1, 2021, subject to Legislative Council review as provided by Iowa Code section 602.4202.

Dated this 29th day of January, 2021.

The Iowa Supreme Court

By: 
Susan Larson Christensen, Chief Justice

Copies to:

Iowa Supreme Court
Iowa Court of Appeals
Chief Judges
Senior Judges
District Court Judges
District Associate Judges
Judicial Magistrates
District Court Administrators
Clerks of Court
Chief Juvenile Court Officers
Association of Corporate Counsel - Iowa Chapter
Clerk of the Iowa Supreme Court
Counsel to the Chief Justice
Creighton Law School
Drake Law School
Iowa Academy of Trial Lawyers
Iowa Association for Justice
Iowa Association of Counties
Iowa Association of Criminal Defense Lawyers
Iowa Attorney General's Office
Iowa Clerks Association
Iowa County Attorneys Association

signature/date review zone

Iowa Court Reporters Association
Iowa Defense Counsel Association
Iowa Department of Corrections
Iowa Department of Public Safety
Iowa Judges Association
Iowa Judicial Branch - Director of Finance
Iowa Judicial Branch - Director of Governmental Affairs
Iowa Judicial Branch - Director of Information Technology
Iowa Juvenile Court Services Association
Iowa League of Cities & Iowa Municipal Attorneys Association
Iowa Legal Aid
Iowa Magistrates Association
Iowa Organization of Women Attorneys
Iowa Police Chiefs Association
Iowa State Police Association
Iowa State Sheriffs and Deputies Association
Legislative Services Agency
LexisNexis
National Bar Association - Iowa Chapter
Office of Professional Regulation
Polk County Bar Association
Public Defenders Association of Iowa
State Court Administrator
State Public Defender
The Iowa State Bar Association
Thomson Reuters (Westlaw)
University of Iowa College of Law

participates in the review process

signature/date review zone

CHAPTER 2
RULES OF CRIMINAL PROCEDURE

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[New Section, Rules, and Forms]

EXPUNGEMENT

Rule 2.80 Expungement of dismissed cases or acquittals.

2.80(1) Either a defendant or a prosecuting attorney may file an application to expunge the district court criminal records of a case under Iowa Code section 901C.2 where an acquittal was entered for all criminal charges or where all criminal charges have been otherwise dismissed. The court may also expunge an eligible case on its own motion. The application may be filed by an attorney of record in the case, by an attorney who enters a limited appearance for the expungement proceedings, or by a self-represented defendant.

2.80(2) An application for expungement of a criminal case record under Iowa Code section 901C.2 shall be initiated by completing and filing an application that substantially complies with Rule 2.86—Form 1: *Application to Expunge Court Record under Iowa Code section 901C.2*.

2.80(3) The application must be filed in the case where expungement is sought and served on the county attorney. If the application is filed by a county attorney, the county attorney shall provide notice to the defendant and any counsel of record.

2.80(4) The application and all attachments shall be confidential.

2.80(5) For the purposes of this rule, a “case” refers to a separately numbered case.

2.80(6) For the purposes of this rule, “otherwise dismissed” includes a separately numbered case in which a case number becomes inactive because all charges have been transferred to another case number.

Rule 2.81 Expungement of eligible misdemeanor convictions.

2.81(1) A defendant seeking expungement of district court criminal records for an eligible misdemeanor as defined in Iowa Code section 901C.3 shall file an application. The application may be filed by an attorney of record in the case, by an attorney who enters a limited appearance for the expungement proceedings, or by a self-represented defendant.

2.81(2) An application for expungement of a misdemeanor under Iowa Code section 901C.3 shall be initiated by executing and filing an application that substantially complies with Rule 2.86—Form 2: *Application to Expunge Misdemeanor Court Records under Iowa Code section 901C.3*. An application for expungement of a misdemeanor under Iowa Code section 901C.3 must be accompanied by an official Division of Criminal Investigation Iowa criminal history record check, obtained by submitting form DCI-77 with a release authorization signature, dated within the past 30 days.

2.81(3) The application must be filed in the case where expungement is sought and served on the county attorney.

2.81(4) If the defendant seeking misdemeanor expungement has records eligible for expungement under different case numbers that arose from the same transaction or occurrence, the defendant must file a copy of the application in each case.

2.81(5) The application and all attachments shall be confidential.

Rule 2.82 Expungement of public intoxication, possession of alcohol under the legal age, and certain prostitution cases.

2.82(1) A defendant seeking expungement of district court criminal records from an eligible misdemeanor as defined in Iowa Code section 123.46, 123.47, or 725.1 shall file an application. The application may be filed by an attorney of record in the case, by an attorney who enters a limited appearance for the expungement proceedings, or by a self-represented defendant.

2.82(2) An application for expungement of a case under Iowa Code section 123.46 shall be initiated by executing and filing an application that substantially complies with Rule 2.86—Form 3: *Application to Expunge Public Intoxication Court Records under Iowa Code section 123.46*.

2.82(3) An application for expungement of a case under Iowa Code section 123.47 shall be initiated by executing and filing an application that substantially complies with Rule 2.86—Form 4: *Application to Expunge Possession of Alcohol under the Legal Age Court Records under Iowa Code section 123.47*.

2.82(4) An application for expungement of a case under Iowa Code section 725.1 shall be initiated by executing and filing an application that substantially complies with Rule 2.86—Form 5: *Application to Expunge Prostitution Court Records under Iowa Code section 725.1*.

2.82(5) The application and all attachments shall be confidential.

Rule 2.83 Expungement proceedings.

2.83(1) The county attorney may file a response to an application under rule 2.80, 2.81, or 2.82. The response shall be filed within 20 days after service of the application unless otherwise ordered by the court. The response shall be confidential.

2.83(2) The district court shall grant the expungement if, after consideration of the application, the response (if any), and any other pertinent information, it determines that the requirements for expungement have been met. The court may conduct a hearing.

2.83(3) For purposes of Iowa Code sections 901C.2(1)(a)(2) and 901C.3(1)(d), the referenced financial obligations are those obligations in the case or cases where expungement is sought. Room and board fees sought under a separate civil action pursuant to Iowa Code section 356.7 are not considered to be obligations in the case or cases where expungement is sought. Payment of court debt or other financial obligations is not a precondition for expungement under Iowa Code sections 123.46(6), 123.47(8), or 725.1(1)(c).

2.83(4) For purposes of Iowa Code section 901C.3(1)(b), any pending charge of a public offense as defined in Iowa Code section 692.1 shall be considered a pending criminal charge.

2.83(5) For purposes of Iowa Code section 901C.3(1)(c), all charges as to which a deferred judgment was granted at the same time shall be considered one deferred judgment.

Rule 2.84 When expungement is granted.

2.84(1) When expungement of a dismissal or acquittal is granted under Iowa Code section 901C.2, the court shall order that the record in that criminal case shall become a confidential record exempt from public access under Iowa Code section 22.7. The record shall be made available by the clerk of the district court, upon request and without court order, to the defendant or to an agency or person granted access to the deferred judgment docket under Iowa Code 907.4(2). The record shall not otherwise be accessible except by court order.

2.84(2) When expungement of a misdemeanor conviction is granted under Iowa Code section 901C.3, the court shall order that the record in that criminal

case shall become a confidential record exempt from public access under Iowa Code section 22.7. The record shall not be accessible except by court order.

2.84(3) When expungement of a conviction for public intoxication, possession of alcohol under legal age, or certain prostitution charges is granted under Iowa Code section 123.46, 123.47, or 725.1, the court shall order that the record in the criminal case shall become a confidential record exempt from public access under Iowa Code section 22.7. The record shall not be accessible except by court order.

2.84(4) The district court shall have jurisdiction to issue further orders as necessary to implement a grant of expungement.

2.84(5) Appellate records, other than appeals of simple misdemeanors to district court, are not subject to expungement.

Rule 2.85 Confidential record of expunged misdemeanors. In order to implement Iowa Code section 901C.3(4), the Iowa Judicial Branch shall maintain a confidential record of expunged misdemeanors. This record shall be confidential and exempt from public access under Iowa Code section 22.7. Before granting an application for expungement under Iowa Code section 901C.3, the district court shall access the record in a manner authorized by the record's designated custodian to determine whether the applicant has received a prior misdemeanor expungement. If a prior misdemeanor expungement is found, the case name, case number, and date of expungement shall be provided to the parties.

Rule 2.86 Forms

Rule 2.86—Form 1: Application to Expunge Court Record under Iowa Code section 901C.2

If you do not understand how to use this form, or if you are unsure whether you should use this form, talk to an attorney.

In the Iowa District Court for _____ County

County where you are filing this Application

State of Iowa or _____

vs.

Defendant

Case no. _____

**Application to Expunge Court Record
under Iowa Code section 901C.2**

If you need assistance to participate in court due to a disability, call the disability coordinator (information at www.iowacourts.gov/for-the-public/ada). Persons who are hearing or speech impaired may call Relay Iowa TTY (1-800-735-2942). **Disability coordinators cannot provide legal advice.**

The undersigned Defendant respectfully applies to the court for an order expunging the court records in this case pursuant to Iowa Code section 901C.2. In support of this application, Defendant states that the following statements are true and correct to the best of Defendant's knowledge:

Read, complete, and check each item if you agree.

1. ☐ This criminal case contains one or more criminal charges for which:

Check one

- A. ☐ An acquittal was entered for all criminal charges.
B. ☐ All criminal charges have been dismissed.

2. ☐ All court costs, fees, and any other financial obligations ordered by the court or assessed by the clerk of district court in relation to the charges in this case have been satisfied in full.

3. ☐ Since entry of the judgment of acquittal or of the order dismissing the case:

Check one

- A. ☐ More than 180 days have passed.
B. ☐ The court should waive the 180-day requirement because:

☐ *Check this box if you have attached a sheet with additional information.*

4. ☐ This case was not dismissed due to Defendant being found not guilty by reason of insanity.
5. ☐ Defendant was not found incompetent to stand trial in this case.

Continue to next page

Read Before Signing

Please check each statement below after you have read it.

- ☐ **I understand** that I must provide a copy of this application to the county attorney.
- ☐ **I understand** that the records in a criminal case expunged under this section are confidential and exempt from public access under Iowa Code section 22.7, but the clerk of district court may make the records available upon request and without court order to Defendant or to an agency or person granted access to the deferred judgment docket under Iowa Code section 907.4(2).
- ☐ **I understand** that Iowa Code section 901C.2 does not apply to dismissals related to a deferred judgment under section 907.9.
- ☐ **I understand** that Iowa Code section 901C.2 applies only to public offenses, as defined under section 692.1.

Certification of Service by Mailing or Delivery

This section to be completed only if filing in paper. This Application, if filed electronically, will automatically be served on the county attorney.

I, _____, certify that on _____, 20____
Print your full name: first, middle, last *Month* *Day* *Year*

I mailed or gave a copy of this Application to the county attorney at this address:

Name of person to whom I delivered or mailed it

Mailing address *City* *State* *ZIP code*

Oath and Signature

I, _____, have read this Application, and I certify under
Print your full name: first, middle, last

penalty of perjury and pursuant to the laws of the State of Iowa that the information I have provided in this Application is true and correct.

_____, 20____
Month *Day* *Year* *Defendant's signature**

Mailing address *City* *State* *ZIP code*

(_____) _____
Phone number *Email address* *Additional email address, if applicable*

**Whether filing electronically or in paper, you must handwrite your signature on this form. If you are filing electronically, scan the form after signing it and then file electronically.*

Rule 2.86—Form 2: Application to Expunge Misdemeanor Court Records under Iowa Code section 901C.3

Note: This form is for expunging **misdemeanor convictions**. Rule 2.86—Form 1 is to be used for expungement of criminal case records where the defendant was acquitted or the charges were dismissed. **Obtaining the advice of counsel is recommended.** Each individual is only allowed one Iowa Code section 901C.3 expungement in the individual's lifetime. If you have multiple misdemeanor convictions, choosing which to expunge may be a difficult strategic decision.

In the Iowa District Court for _____ County

County where you are filing this Application

State of Iowa or _____

vs.

Defendant

Case no(s). _____

**Application to Expunge Misdemeanor
Court Records under Iowa Code section
901C.3**

If you need assistance to participate in court due to a disability, call the disability coordinator (information at www.iowacourts.gov/for-the-public/ada). Persons who are hearing or speech impaired may call Relay Iowa TTY (1-800-735-2942). **Disability coordinators cannot provide legal advice.**

The undersigned Defendant respectfully applies to the court for an order expunging the misdemeanor court records in the above-captioned case (or cases) pursuant to Iowa Code section 901C.3. In support of this application, Defendant states that the following statements are true and correct to the best of Defendant's knowledge:

Read, complete, and check each item if you agree.

1. Defendant's personal information:

Current legal name:

Full first name

*Full middle name
(write "N/A" if none)*

Full last name

All other names ever used (including any other previous legal names and nicknames):

Full first name

*Full middle name
(write "N/A" if none)*

Full last name

☐ Check this box if you have attached a sheet with additional alternate names.

Personal identifying information:

*Date of birth
(month/day/year)*

Driver's License Number

Social Security Number

2. ☐ Defendant has not been granted a prior Iowa Code section 901C.3 expungement.
3. ☐ This expungement application involves related cases and Defendant seeks the expungement of the misdemeanor court records in all of following cases that arise out of the same transaction or occurrence: *See Iowa Code § 901C.3(3).*
- _____
- _____
- _____

☐ Check this box if you have attached a sheet with additional information.

NOTE: You must file this application **separately in each of these cases.**

4. ☐ The misdemeanor criminal convictions covered by this application are eligible for expungement. **NOTE:** *Convictions under Iowa Code sections 123.46, 123.47(3) (or similar local ordinance), 235B.20, 321.218, 321A.32, 321J.21, 321J.2, 707.5, 708.2(3), 708.2A, 708.7, 708.11, 708.12, 716.8(3) or (4), 721.2, 721.10, 723.1; or chapters 717C, 719, 720, 721.2, 724, 726, 728, 901A; or a sex offense as defined in section 692A.101 are **ineligible**.*
5. ☐ All court costs, fees, fines, restitution, and any other financial obligations ordered by the court or assessed by the clerk of district court in relation to the misdemeanor convictions covered by this application have been paid in full.
6. ☐ More than eight years have passed since the date of the misdemeanor convictions identified in section 2.
7. ☐ Defendant has no pending criminal charges. **NOTE:** *For purposes of this question, a “criminal” charge means any public offense as defined in Iowa Code section 692.1.*
8. ☐ Defendant has not previously been granted more than one deferred judgment. *All charges as to which a deferred judgment was granted at the same time are considered one deferred judgment.*
9. ☐ Defendant has attached an official Division of Criminal Investigation Iowa criminal history records check dated within the past 30 days of the filing of this application. *Defendants must obtain their criminal history by submitting form DCI-77 with a release authorization signature. Additional information regarding obtaining the records check can be found at: <https://dps.iowa.gov/divisions/criminal-investigation/criminal-history/record-check-forms>.*

Read Before Signing

Please check each statement below after you have read it.

- ☐ **I understand** that I must provide a copy of this application to the county attorney.
- ☐ **I understand** that if I file this application to expunge multiple cases, all cases must be related to the same transaction or occurrence.
- ☐ **I understand** that Iowa Code section 901C.3 only permits me one misdemeanor expungement in my lifetime.
- ☐ **I understand** that the records in a criminal case expunged under this section are confidential and exempt from public access under Iowa Code section 22.7, but the clerk of district court may make the records available upon court order.

Certification of Service by Mailing or Delivery

This section to be completed only if filing in paper. This Application, if filed electronically, will automatically be served on the county attorney.

I, _____, certify that on _____, 20____
Print your full name: first, middle, last *Month* *Day* *Year*

I mailed or gave a copy of this Application to the county attorney at this address:

Name of person to whom I delivered or mailed it

Mailing address *City* *State* *ZIP code*

Oath and Signature

I, _____, have read this Application, and I certify under
Print your full name: first, middle, last

penalty of perjury and pursuant to the laws of the State of Iowa that the information I have provided in this Application is true and correct.

_____, 20____
Month *Day* *Year* *Defendant's signature**

Mailing address *City* *State* *ZIP code*

(_____) _____
Phone number *Email address* *Additional email address, if applicable*

**Whether filing electronically or in paper, you must handwrite your signature on this form. If you are filing electronically, scan the form after signing it and then file electronically.*

Rule 2.86—Form 3: Application to Expunge Public Intoxication Court Records under Iowa Code section 123.46

If you do not understand how to use this form, or if you are unsure whether you should use this form, talk to an attorney.

In the Iowa District Court for _____ County
County where you are filing this Application

State of Iowa or _____

vs.

Defendant

Case no. _____

**Application to Expunge Public
Intoxication Court Records under Iowa
Code section 123.46**

If you need assistance to participate in court due to a disability, call the disability coordinator (information at www.iowacourts.gov/for-the-public/ada). Persons who are hearing or speech impaired may call Relay Iowa TTY (1-800-735-2942). **Disability coordinators cannot provide legal advice.**

The undersigned Defendant respectfully applies to the court for an order expunging the court records in the above-captioned case pursuant to Iowa Code section 123.46(6). In support of this application, Defendant states that the following statements are true and correct to the best of Defendant's knowledge:

Read, complete, and check each item if you agree.

1. ☐ I was convicted for a violation of Iowa Code section 123.46, consumption or intoxication in public places, or of a similar local ordinance on:
 _____, _____, _____
 Month Day Year
2. ☐ I have had no criminal convictions other than local traffic violations or simple misdemeanor violations under chapter 321 during the two-year period following the conviction.

Read Before Signing

Please check each statement below after you have read it.

- ☐ **I understand** that I must provide a copy of this application to the county attorney.
- ☐ **I understand** that the records in a criminal case expunged under this section are confidential and exempt from public access under Iowa Code section 22.7. The record shall not be accessible except by court order.

Continue to next page

Certification of Service by Mailing or Delivery

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I, _____, certify that on _____, 20____
Print your full name: first, middle, last *Month* *Day* *Year*

I mailed or gave a copy of this Application to the county attorney at this address:

Name of person to whom I delivered or mailed it

Mailing address *City* *State* *ZIP code*

Oath and Signature

I, _____, have read this Application, and I certify under
Print your full name: first, middle, last

penalty of perjury and pursuant to the laws of the State of Iowa that the information I have provided in this Application is true and correct.

_____, 20____
Month *Day* *Year* *Defendant's signature**

Mailing address *City* *State* *ZIP code*

(_____) _____
Phone number *Email address* *Additional email address, if applicable*

**Whether filing electronically or in paper, you must handwrite your signature on this form. If you are filing electronically, scan the form after signing it and then file electronically.*

Rule 2.86—Form 4: Application to Expunge Possession of Alcohol under the Legal Age Court Records under Iowa Code section 123.47

If you do not understand how to use this form, or if you are unsure whether you should use this form, talk to an attorney.

In the Iowa District Court for _____ County
County where you are filing this Application

State of Iowa or _____

vs.

Defendant

Case no. _____

**Application to Expunge Possession of
Alcohol under the Legal Age
Court Records under
Iowa Code section 123.47**

If you need assistance to participate in court due to a disability, call the disability coordinator (information at www.iowacourts.gov/for-the-public/ada). Persons who are hearing or speech impaired may call Relay Iowa TTY (1-800-735-2942). **Disability coordinators cannot provide legal advice.**

The undersigned Defendant respectfully applies to the court for an order expunging the court records in the above-captioned case pursuant to Iowa Code section 123.47(9). In support of this application, Defendant states that the following statements are true and correct to the best of Defendant's knowledge:

Read, complete, and check each item if you agree.

1. ☐ I was convicted for a violation of Iowa Code section 123.47, possession of alcohol under the legal age, or of a similar local ordinance on:

Month Day Year
2. ☐ I have had no criminal convictions other than local traffic violations or simple misdemeanor violations under chapter 321 during the two-year period following the conviction.

Read Before Signing

Please check each statement below after you have read it.

- ☐ **I understand** that I must provide a copy of this application to the county attorney.
- ☐ **I understand** that the records in a criminal case expunged under this section are confidential and exempt from public access under Iowa Code section 22.7. The record shall not be accessible except by court order.

Continue to next page

Certification of Service by Mailing or Delivery

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I, _____, certify that on _____, 20____
Print your full name: first, middle, last Month Day Year

I mailed or gave a copy of this Application to the county attorney at this address:

Name of person to whom I delivered or mailed it

Mailing address City State ZIP code

Oath and Signature

I, _____, have read this Application, and I certify under
Print your full name: first, middle, last

penalty of perjury and pursuant to the laws of the State of Iowa that the information I have provided in this Application is true and correct.

_____, 20____
*Month Day Year Defendant's signature**

Mailing address City State ZIP code

(_____) _____
Phone number Email address Additional email address, if applicable

**Whether filing electronically or in paper, you must handwrite your signature on this form. If you are filing electronically, scan the form after signing it and then file electronically.*

Rule 2.86—Form 5: Application to Expunge Prostitution Court Records under Iowa Code section 725.1

If you do not understand how to use this form, or if you are unsure whether you should use this form, talk to an attorney.

In the Iowa District Court for _____ County
County where you are filing this Application

State of Iowa or _____

vs.

Defendant

Case no. _____

**Application to Expunge Prostitution
Court Records under Iowa Code section
725.1**

If you need assistance to participate in court due to a disability, call the disability coordinator (information at www.iowacourts.gov/for-the-public/ada). Persons who are hearing or speech impaired may call Relay Iowa TTY (1-800-735-2942). **Disability coordinators cannot provide legal advice.**

The undersigned Defendant respectfully applies to the court for an order expunging the court records in the above-captioned case pursuant to Iowa Code section 725.1(1)(c). In support of this application, Defendant states that the following statements are true and correct to the best of Defendant's knowledge:

Read, complete, and check each item if you agree.

1. ☐ I was convicted for a violation of Iowa Code section 725.1(1)(a), prostitution, or of a similar local ordinance on:
 _____, _____, _____
Month Day Year
2. ☐ I was under the age of eighteen when I engaged in the illegal sex act or acts I was found guilty of committing.
3. ☐ I have had no criminal convictions other than local traffic violations or simple misdemeanor violations under chapter 321 during the two-year period following the conviction.

Read Before Signing

Please check each statement below after you have read it.

- ☐ **I understand** that I must provide a copy of this application to the county attorney.
- ☐ **I understand** that the records in a criminal case expunged under this section are confidential and exempt from public access under Iowa Code section 22.7. The record shall not be accessible except by court order.

Continue to next page

Certification of Service by Mailing or Delivery

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I, _____, certify that on _____, 20____
Print your full name: first, middle, last *Month* *Day* *Year*

I mailed or gave a copy of this Application to the county attorney at this address:

Name of person to whom I delivered or mailed it

Mailing address *City* *State* *ZIP code*

Oath and Signature

I, _____, have read this Application, and I certify under
Print your full name: first, middle, last

penalty of perjury and pursuant to the laws of the State of Iowa that the information I have provided in this Application is true and correct.

_____, 20____
Month *Day* *Year* *Defendant's signature**

Mailing address *City* *State* *ZIP code*

(_____) _____
Phone number *Email address* *Additional email address, if applicable*

**Whether filing electronically or in paper, you must handwrite your signature on this form. If you are filing electronically, scan the form after signing it and then file electronically.*